Communication 588/15: *Minority Rights Group International and Environnement Ressources Naturelles et Développement (on behalf of the Batwa of Kahuzi Biega National Park, DRC) v Democratic Republic of Congo (DRC)*

CORRIGENDUM

1. The African Commission on Human and Peoples' Rights (Commission) ruled on the merits of Communication 588/15: Minority Rights Group International and Environnement Ressources Naturelles et Développement (on behalf of the Batwa of Kahuzi Biega National Park, DRC) v Democratic Republic of Congo (DRC) during its 71st Ordinary Session, held virtually from 21 April 2022 to 13 May 2022.

2. After transmitting the decision to the parties, the Commission found it necessary to correct certain errors and clarify its position as follows:

   i. In the paragraph 217(4) should read as follows where it reads "are no longer relevant" it should read "are ineffective". Therefore, the paragraph should read as follows:

   *A statement that fortress conservation models based on the eviction of indigenous peoples **are ineffective**, and that in cases where such measures are necessary, they must take into account their impact on indigenous peoples.*

   ii. In paragraph 219(i) where it reads "Convention No. C07", it should read "Convention No. C169"; where it read "1957", it should read "1989". Therefore, the paragraph should read as follows:

   *Ratify the International Labour Organisation Convention **No. C169** concerning Indigenous and Tribal Peoples, **1989**.*

   iii. In paragraph 230, where it reads "are no longer relevant", should read "are ineffective". In the French version, where it reads "conservation des forteresses fondées", it should read "conservation forteresse fondés" Therefore, the paragraph should read as follows:

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*Declares that fortress conservation models based on the exclusion of indigenous peoples from their ancestral lands without their free and prior consent **are ineffective**, and recalls that, in cases where such conservations are necessary, their impact on indigenous peoples must be carefully analysed and remedied. In particular, the conservation model used in the Kahuzi-Biega National Park has failed, by excluding the Batwa as custodians of the forest.*

iv. In paragraph 233(ii), where its reads "Convention C107", it should "Convention No. 169"; where it read "1957", it should read "1989". Therefore, the paragraph should read as follows:

*Ratify the International Labour Organisation Convention No. **C169** concerning Indigenous and Tribal Peoples, **1989**.*

Done at the 79th Ordinary Session, held in hybrid format from 14th May to 3rd June 2024.

Honorable Commissioner Rémy Ngoy Lumbu

Chairperson of the African Commission on Human and Peoples' Rights
ACHPR

Madam Abiola Idowu-Ojo

Ag. Secretary the African Commission on Human and Peoples' Rights
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